

TENTATIVE RULINGS 5-29-26
Department R17- Judge Gilbert G. Ochoa

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This procedure is meant to minimize your waiting time in Court.

JUAN SILVA

v.

CESAR BALSULTO CERVANTES

CIVRS2403124

Motion: Demurrer to First Amended Complaint

Moving Party: Defendant Cesar Basulto Cervantes

Responding Party: Plaintiff Juan Silva

DISCUSSION

Statement of the Law

Demurrer. A demurrer can be used only to challenge defects appearing on the face of the pleading under attack, or from judicially noticeable matters outside the pleading. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91,

94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded, i.e., ultimate facts alleged, but not contentions, deductions, or conclusions of fact or law. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591; *Adelman v. Associated Int’l. Ins. Co.* (2001) 90 Cal.App.4th 352, 359.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d. 593, 604.) The plaintiff’s ability to prove the allegations is of no concern in ruling on a demurrer. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d. 197, 213-214.) The complaint will be construed liberally. (Code Civ. Proc., §452.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility the defect can be cured by amendment. (*Blank v. Kirwan, supra*, 39 Cal.3d at p. 318.) On the other hand, “a trial court does not abuse its discretion by sustaining a general demurrer without leave to amend if it appears from the complaint that under applicable substantive law there is no reasonable possibility that an amendment could cure the complaint’s defect.” (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

Analysis

Belated amendment. As a threshold issue, Defendant notes the Court’s October 17, 2025 ruling sustaining the demurrer granted Plaintiff only 15 days leave to amend. The amended

pleading was therefore due to be filed no later than November 3, 2025. However, Plaintiff filed the FAC one day later, on November 4, 2025.

Defendant asks the Court dismiss the action due to this belated filing. A plaintiff's failure to file an amended complaint within the time specified subjects the action to dismissal under Code of Civil Procedure section 581, subdivision (f)(2). However, such dismissal is discretionary. (*Harlan v. Department of Transp.* (2005) 132 Cal.App.4th 868, 874.) The Court declines to dismiss the action on this ground.

Statute of limitations. Plaintiff argues that the clerk of the court had no authority to reject Plaintiff's filing of the original complaint on December 5, 2024, pursuant to the holding in *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268 (*Carlson*).

In *Carlson*, the plaintiff attempted to timely submit a complaint for filing with the Los Angeles Superior Court, but it was rejected because it failed to include a "Certificate of Assignment," as required by a local rule. Instead of filing the complaint, the clerk of the court mailed it back to counsel. By the time counsel was able to return the complaint to the court with a Certificate of Assignment several days later, the statute of limitations period had elapsed. (*Carlson, supra*, 68 Cal.App.4th at p. 1270.) The appellate court reversed the trial court's order sustaining the demurrer based on statute of limitations grounds. It held that, "the local superior court may not condition the filing of a complaint on local rule requirements. Instead, so long as a complaint complies with state requirements, the clerk has a ministerial duty to file. In legal effect, a complaint is 'filed' when it is presented to the clerk for filing in the form required by state law." (*Ibid.*)

Code of Civil Procedure section 402, subdivision (a)(3), specifically provides that "the clerk may not reject a case for filing, because it is filed, or a person seeks to file it, in a court location other than the location specified by local rule." San Bernardino County Superior Court

Local Rule 131 provides the Presiding Judge shall designate where all actions shall be filed and heard by general order.

But in *Carlton*, the court discussed that “the local superior court may not condition the filing of a complaint on local rule requirements. Instead, so long as a complaint complies with state requirements, the clerk has a ministerial duty to file. In legal effect, a complaint is ‘filed’ when it is presented to the clerk for filing in the form required by state law.” (*Id.* at p. 1270.) The Court also discussed that nothing in Code of Civil Procedure section 575.2 authorizes a clerk to refuse to file a pleading for its failure to comply with the court’s local rule. (*Carlson, supra*, 68 Cal.App.4th at pp. 1279-1280.) Section 575.2, subdivision (b), explains the intent of the Legislature that failure to comply with local rules is the responsibility of counsel, not the party, and any penalty imposed should not affect a party’s cause of action. (*Carlson, supra*, 68 Cal.App.4th at p. 1280.)

If section 402, subdivision (a)(3), is considered, then Plaintiff’s original filing was improperly rejected and the clerk should have either transferred the submission to the correct location for filing, or accepted it for filing and the court, on its own motion, transferred it to the proper location.

Code of Civil Procedure section 1010.6, subdivision (e)(4)(E), is specific to electronically filed documents and provides for a tolling of the statute of limitations when a clerk does not file a complaint because it “does not comply with applicable filing requirements or the required filing fee has not been paid.” It provides that any applicable statute of limitations “shall be tolled for the period beginning on the date on which the court received the document” through the later of either “the date on which the clerk of the court sent the notice of rejection” or “the date on which the electronic filing service provider or electronic filing manager sent the notice of rejection”, “plus

one additional day if the complaint ... is subsequently submitted in a form that corrects the errors which caused the document to be rejected. The party filing the complaint ... shall not make any change to the complaint ... other than those required to correct the errors which caused the document to be rejected”

A reasonable interpretation of section 1010.6, subdivision (e)(4)(E), is that a clerk must first have legal authority to reject a complaint for it to apply. Again, “[t]he functions of the clerk are purely ministerial.” (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 777.) ““When a proper offer of filing has been made by a party, the party shall not suffer for the failure of the clerk to perform his duty.”” (*Rojas, supra*, 67 Cal.App.4th at p. 778, quoting *Dillon v. Superior Court* (1914) 24 Cal. App. 760, 765-766.)

Defendant confusingly argues that “Plaintiff’s own documents reflect the clerk rejected the initial e-filing on February 18, 2025...” (Demurrer, 4:25-26.) The FAC alleges no such thing. The only reference in the FAC to February 18, 2025 is that One Legal sent an email on that date notifying that Plaintiff’s counsel that the firm credit card had been charged for \$20.80. “[H]owever this newly discovered communication did not have any status update as to the filing.” (FAC, ¶22.) As a matter of pleading, the action can be considered filed on December 5, 2024 and is therefore timely. This can be challenged later in the case, but not at the pleading stage. The Court overrules the demurrer on this ground.¹

Movant to give notice.

Dated-

Judge

¹ Plaintiff alternatively argues the action is saved under the doctrine of equitable tolling for much the same reasons. The Court need not reach this second argument.

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ROBBI CARTER

v.

AMARI JONES

CIVSB2221393

Motion(s): Motion to Set Aside Entry of Default and Default Judgment

Movant(s): Defendant Amari Jones

Respondent(s): Plaintiff Robbi Carter

DISCUSSION

Plaintiff's Objection to Declaration of Jaimee Deegan

With his reply, Defendant separately filed the declaration of Jaimee Deegan, a claims adjuster for Mercury Insurance Group. Plaintiff objects to the declaration arguing it is improper for the Court to consider new evidence provided in reply papers.

The Court DENIES Plaintiff's objection. Deegan's declaration is not "new evidence" as the declaration is also included as Exhibit C to Defendant's moving papers.

Legal Standard

Under Code of Civil Procedure section 473, subdivision (d), the Court may set aside a void judgment or order. A judgment/order is void if the court lacks subject matter or personal jurisdiction or grants relief that it lacks the power to grant. (*Becker v. S.P.V. Construction Co.* (1980) 27 Cal.3d 489, 493.)

A party may also move to set aside a default or default judgment under Code of Civil Procedure section 473.5, "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action..." (Code of Civ. Proc., § 473.5, subd. (a).)

A default or default judgment entered against a defendant who was not served with a summons in the manner prescribed by the statute is void and may be set aside as a matter of law. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (*Dill*).) A void judgment, whether on its face or not, may be set aside at any time. (*California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212, 214, 226.)

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. Without substantial compliance with the statutory requirements for

service, personal jurisdiction is not conferred even if the defendant has notice of the litigation. (*MJS Enterprises Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.)

After making a reasonably diligent effort to personally serve a defendant, substitute service may be made on an individual at the “person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box.” (Code Civ. Proc., § 415.20, subd. (b).) A person’s “dwelling house or usual place of abode” is the location that the person holds out as their principal residence and where he or she is most likely to receive actual notice. (*Zirbes v. Statto* (1986) 187 Cal.App.3d 1407, 1415-1417.) A person’s “usual mailing address” need not be his or her home or place of business. (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193; 1201-1202.) Further, a party seeking service on a defendant is not required to exhaust all available avenues to determine the defendant’s current address; “[c]ontacting the United States Postal Service [is] sufficient.” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 545.)

Finally, there is a strong policy in favor of litigating a dispute on the merits and courts generally disfavor judgment by default. (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

Analysis

Defendant argues that the defaults taken against him are void because he was never properly served with the summons and complaint. Defendant states that when substitute service was made at the Firethorn property (April 4, 2023), he did not live or receive mail at that address. (Jones Decl. ¶¶ 2, 8.) Defendant states that from 2019 to June of 2023, he lived, and received mail, at an address in El Cajon, California. (Jones Decl. ¶ 5.) Since June of 2023, Defendant has lived at 9420 N. 50th Street in Tampa, Florida. (Jones Decl. ¶ 6.)

In opposition, Plaintiff argues that the Firethorn address was on Defendants' driver's license and vehicle documentation that he presented to Plaintiff on September 29, 2020, when the accident occurred. (Carter Decl. Exs A, B.) As a result, Plaintiff argues that the address was appropriate for service on Defendant.

Plaintiff also asserts that because she filed the proof of service, there is a rebuttable presumption that service was proper. Plaintiff argues that Defendant's evidence cannot overcome this presumption because Defendant claims he has not lived at the Firethorn address since 2016, but the driver's license Defendant presented to Plaintiff at the time of the accident was issued in 2019 and contained the Firethorn address.

In general, the filing of a proof of service creates a rebuttable presumption that service was proper. But the presumption arises only if the proof of service complies with applicable statutory requirements. (*Dill, supra*, 24 Cal.App.4th at pp. 1441-1442.) The effect of such a rebuttable presumption is "to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its non-existence, in which case the trier of fact shall determine the existence or non-existence of the presumed fact from the evidence and without regard to the presumption." (Evid. Code, § 604.)

In addition, Evidence Code section 647 provides: "The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."

While Plaintiff's argument may create some doubt regarding where Defendant lived when the accident occurred, Defendant's sworn statement that over two years after the accident he did not live or receive mail at the Firethorn address is sufficient to overcome the presumption that

service was proper at that address. Thus, the burden is on Plaintiff to show that in 2023, the Firethorn address was a proper location to serve Defendant.

Other than showing that the Firethorn address was on Defendant's driver's license and vehicle documentation in 2020, and arguing that documents sent to the Firethorn address during the litigation were not returned as undeliverable, Plaintiff does not present any evidence to show that in 2023, Defendant lived at the Firethorn address or received mail there. Plaintiff also does not present any evidence to show that she made any effort to verify Defendant's correct address before attempting service or that the Firethorn address was a valid address for service on Defendant.

Plaintiff does not establish that she exercised reasonable diligence in attempting to personally serve Defendant at a proper address prior to resorting to substitute service. Further, Plaintiff does not establish that substitute service was made at Defendant's "dwelling house, usual place of abode, usual place of business, or usual mailing address." As a result, service on Defendant was not valid under Code of Civil Procedure section 415.20, subdivision (b), and the default and default judgment entered against Defendant are void as a matter of law.

Therefore, the Court grants Defendant's motion to set aside the default and default judgment.²

² In their papers, the parties reference settlement discussions between Plaintiff's counsel and Defendant's insurance carrier presumably to address Defendant's knowledge of the lawsuit and his request for relief under Code of Civil Procedure section 473.5. However, section 473.5 and Defendant's knowledge are not pertinent to the analysis here because there was no valid service. Without valid service, personal jurisdiction is not conferred even if a defendant has notice of the litigation. (*MJS Enterprises Inc. v. Superior Court*, *supra*, 153 Cal.App.3d at p. 557.)

Ruling

- (1) Grant Defendant Amari Jones' motion to set aside entry of default and default judgment and set aside the November 30, 2023, entry of default and March 28, 2025, default judgment.
- (2) Overrule Plaintiff's objection to the Declaration of Jaimee Deegan. The declaration was included as Exhibit C to Defendant Jones' moving papers and is not new evidence.

Movant to give notice.

Dated-

Judge